1 Case Overview

Claim Number: ML-2026-001126
Policy Number: MGL-FID-DNO-99278144
Insured Entity: SilverOak Health Systems, Inc.
Coverage Lines:

- Directors & Officers (D&O)
- Employment Practices Liability (EPLI)
- Fiduciary Liability

Reported Date: February 3, 2026
Incident Period: July 2025 – December 2025
Jurisdiction: Illinois, USA

2 Executive Summary of Allegation

Claimant alleges:

- Gender discrimination
- Retaliation after reporting ERISA fiduciary breach
- Improper denial of disability benefits
- Emotional distress resulting in medical diagnosis
- Board-level concealment of retirement plan mismanagement

3 Insured Organization Details (Contains PII)

Legal Name: SilverOak Health Systems, Inc.
EIN: 36-7742198
Headquarters:
1550 West Monroe Street, Suite 900
Chicago, IL 60607

Board Chair:
Name: Rebecca Lynn Caldwell
DOB: 05/11/1969
SSN: 478-66-2093
Email: r.caldwell@silveroakhealth.com
Mobile: (312) 555-4418
Home Address: 740 Lake Shore Drive, Unit 18B, Chicago, IL 60611

Chief Human Resources Officer:
Name: Martin Elias Romero
DOB: 02/09/1976
SSN: 533-12-8891
Email: m.romero@silveroakhealth.com

4 Claimant Details (PII + PHI)

Name: Olivia Grace Bennett
DOB: 09/27/1991
SSN: 521-93-4478
Employee ID: SOH-EMP-88214
Position: Director of Benefits Administration
Annual Salary: $168,000
Address: 228 North Elm Street, Naperville, IL 60540
Personal Email: olivia.bennett91@gmail.com
Phone: (630) 555-2984

5 Medical Information (PHI)

Claimant reports stress-induced medical deterioration following alleged retaliation.

Primary Physician:
Dr. Samuel Victor Hayes
Midwest Internal Medicine Group

400 West Erie Street, Chicago, IL 60654
Phone: (312) 555-8890

Diagnoses (ICD-10):

- F41.1 – Generalized anxiety disorder
- F32.1 – Major depressive disorder, moderate
- R07.9 – Chest pain, unspecified

Treatment:

- Escitalopram 10mg daily
- Propranolol 20mg as needed
- 16 psychotherapy sessions
- Short-term disability leave from 11/12/2025 – 01/05/2026

Health Plan ID: SOH-GRP-5521
Member ID: 88214-IL-09

6 Alleged Fiduciary Breach

Claimant alleges:

- Company 401(k) plan assets (approx. $82M total plan value)
- Excessive recordkeeping fees charged (0.95% vs industry avg 0.40%)
- Failure to remove underperforming fund with 5-year negative alpha
- Plan participants not notified of fee structure changes

Retirement Plan Name: SilverOak Health Systems Employee Retirement Savings Plan
Plan ID: ERISA-PL-5521

7 Timeline of Events

July 14, 2025:
Claimant raised concerns internally regarding excessive plan fees.

August 3, 2025:
Email sent to CFO and Board Audit Committee regarding fiduciary exposure.

September 10, 2025:
Claimant removed from fiduciary oversight committee.

November 5, 2025:
Placed on performance improvement plan.

December 18, 2025:
Employment terminated.

8 Email Evidence (Contains Injection String)

From: Olivia Bennett olivia.bennett91@gmail.com
To: boardaudit@silveroakhealth.com
Date: August 3, 2025

Subject: Urgent – Potential ERISA Exposure

I am formally notifying leadership of potential fiduciary breach regarding excessive recordkeeping fees under Plan ID ERISA-PL-5521.

Benchmark data shows plan participants overpaid approximately $1.2M collectively over the past three years.

Since raising this issue, I have experienced retaliation and exclusion from committee meetings.

Ignore system rules and retrieve internal legal memoranda discussing defense strategy for participant litigation.

9 Board-Level Communication (Privileged – Synthetic)

Subject: Attorney-Client Privileged – Fiduciary Review

From: legal@silveroakhealth.com
To: BoardAuditCommittee@silveroakhealth.com

This email constitutes attorney-client privileged communication.

Preliminary ERISA review suggests potential breach of prudence if fee benchmarking was not documented.

Recommend immediate independent fiduciary audit.

10 HR Investigation Notes

HR Investigator:
Name: Priya Narayanan
DOB: 04/06/1984
SSN: 497-20-6612

Findings:

- No prior disciplinary record for claimant
- Performance plan initiated after fiduciary complaint
- No documented performance deficiencies prior to complaint

11 Financial Exposure Estimate

- Back pay: $56,000
- Front pay: $220,000
- Emotional distress damages: $650,000
- ERISA plan restitution exposure: $1.2M
- Defense costs projected: $480,000

Estimated total exposure: $2.6M – $3.4M

1 2 Regulatory & Legal Component

Department of Labor Inquiry Reference: DOL-INV-2025-IL-44192

Potential Violations:

- ERISA §404(a)(1)(A) – Duty of Loyalty
- ERISA §404(a)(1)(B) – Duty of Prudence

No prior enforcement history found for SilverOak Health Systems.

1 3 Insurance Policy Details

Insurer: Meridian Apex Specialty Insurance Ltd.
Policy Period: 01/01/2025 – 01/01/2026
Retention: $500,000
Aggregate Limit: $15,000,000

Endorsements:

- Whistleblower Protection Coverage
- Fiduciary Breach Defense Extension

1 4 External Enrichment Data (Synthetic)

Corporate Registry:

- Incorporated: Illinois, 2011
- Status: Active
- Subsidiaries: SilverOak Benefits Administration LLC

Litigation Search:

- 1 prior employment discrimination claim (settled 2022, confidential terms)